Examining Racial Bias Within the Death Penalty

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Abstract

This paper will discuss the debate surrounding the death penalty within the United States, noting both the ethical dilemmas involved as well as perceived biases. Often, critical arguments surrounding the death penalty emphasize surface level statistical arguments that tend to miss the much deeper issues belonging to the current capital punishment system. This paper discusses the primary issues within the system such as geographical and economical arbitrariness. It also explains the historical court precedents that have led to our modern day dysfunction such as Furman v Georgia and Gregg v Georgia. The geographical dysfunction has mainly been exacerbated by the fact that most death sentences occur one state, Texas, and one county in Texas, Harris County. This geographical arbitrariness is the source of public distrust in the system and inevitably leads to perceptions of bias, skewed or not. Because of this inability of the United States criminal justice system to administer the death penalty fairly, an immediate federal moratorium should be put in place.

Keywords: capital punishment, death penalty, fourteenth amendment, ethical analysis, racial bias

Examining Racial Bias within the Death Penalty

The death penalty is one of the most contentious topics within the United States criminal justice system. And for good reason, it is a debate on whether and when it is right for the state to end an individual's life as a punishment for certain crimes. There are numerous criticisms of how the United States justice system handles capital punishment, racial discrimination being one of the most common. Historically, many communities' perception of the death penalty is that it has been applied arbitrarily based on race (Bucerius & Tonry, 2014). For that reason, there have been numerous Supreme Court cases that have deliberated on how to maintain the constitutionality of the death penalty in tandem with maintaining the 14th amendment rights of citizens. One of the key arguments of every federal case involving capital punishment since the 1970's is that in order for it to be constitutional, it must not be performed arbitrarily (Gregg v. Georiga 1976). However, examining how the death penalty is performed in practicing states shows that it is still executed arbitrarily despite reforms. Arbitrary sentences are inherently unjust, so one cannot blame the perceptions that have grown up around the death penalty, especially ones concerning race. Due to the arbitrary nature of how the death penalty is sentenced; in order to preserve the 14th amendment rights of every citizen, a national moratorium should be placed on the practice.

Unfortunately, the public discussion around the death penalty is largely unhelpful. Due to the nature of the controversy, many arguments on both sides of the aisle are based on personal/emotional beliefs and not fact. If statistics are provided, they are usually presented in such a way that they only tell half the story in order to confirm the bias of the author. This is especially true with statistics involving racial demographics. One of the main problems with death penalty statistics quoted in public discourse is that they are largely national statistics (National Association of Criminal Defense Lawyers, n.d.). The issue with this is that most death

penalty sentencing is handled at the state and district court level, not national. Additionally, only half the states in the US actually perform capital punishment, making national statistics that much more useless in the context of the death penalty.

The confusion on how to analyze death penalty statistics is one of the reasons discourses around the death penalty is so difficult. Despite this, death penalty activists have attempted to study racial bias within capital punishment by measuring two key statistics: death row demographics and race of the victim (Bucerius & Tonry, 2014). While these are helpful distinctions in studying disparities within sentencing practices, the way they are used stops short of giving the whole context as well as not getting to the heart of the issue.

Death row demographics are one of the most cited statistics in discussion of capital punishment. A line that is often stated is "The death row population is 42% African American, despite them only making up 13% of the United States population" (National Association of Criminal Defense Lawyers, n.d.). Activists that use a variation of this statistical argumentation often fail to include relevant statistics. For example, 13% of the total United States population is not the same as the percentage of the black population in states that practice capital punishment, making it an irrelevant statistic. In addition, activists also fail to include relevant statistics such as the fact that African Americans commit crimes warranting death penalty sentencing on par of their death row statistic. (Federal Bureau of Investigation, 2020). This is not to argue that no racial bias exists within the courts, but rather that this line of argumentation fails to prove it.

Race of the victim statistics are often quoted as well in the discussion of death penalty sentencing. A statistic that is often quoted is "Over 75% of those executed in the United States since 1976 were convicted of killing white victims, despite the fact that roughly half of homicide victims in the United States are African American" (National Association of Criminal Defense

Lawyers, n.d.). While this statistic certainly communicates the United States criminal justice system's checkered past with African American citizens, it also presents the information in a deceptive way. For example, it fails to mention that capital crime committed is almost all intraracial. For example, victims of first degree murder are almost always the same race as their perpetrator (Federal Bureau of Investigation, 2020). Based on that same line of reasoning, if the way activists are using the original statistic is true, one could argue that African Americans are not receiving the death penalty enough.

The argumentation so far has not been to prove activist's perceptions of racial bias within death penalty sentencing as an illusion, but rather to point out that most of the statistics regarding the death penalty do not say much at all. Every state and county that practices death penalty sentencing handles it differently. Additionally, each state and county has varying racial demographics. Statistical argumentation is easily debated and does not paint the whole picture of how the criminal justice system is failing within death penalty sentencing. In order to perceive bias within the system correctly, one has to examine how the death penalty has been historically administered.

One of the first federal cases to take on the death penalty was Furman v. Georgia. The central question of Furman v. Georgia was whether death penalties in the United States were being administered constitutionally. What they ruled was that due to the arbitrary way that states were administering the death penalty, that citizens Fourteenth Amendment rights were violated and in turn, their Eight Amendment rights as well (Furman v Georgia, 1972). The reasoning behind this ruling was that whether a defending received the death penalty or not heavily depended on details such as their race, the geography of where the crime was committed, jury, and prosecutor. One of the justices actually compared death sentencing to "being struck by

lightning" due to how random the death sentences seemed to be handed out. As a result of the ruling, a moratorium was placed on the death penalty (Furman v Georgia, 1972).

Gregg v. Georgia, occurring three years later, served as a response to the issues raised in Furman v. Georgia. The court ruled that the death penalty is not inherently unconstitutional, but to comply it must be performed in an unarbitrary way (Gregg v Georgia,1976). In the case, Georgia was shown to have rewritten their capital punishment laws to do that very thing. They created a two tier sentencing process that is still used at least in some form across many states. First, a jury decides whether the defendant is guilty of the crime. If the defending is convicted, a second jury is held in order to consider circumstances surrounding the crime. Capital punishment could only be administered if the jury found that the defendant's crime warranted it. The sentence would then be reviewed by the Georgia Supreme Court. In summation, the courts ruling was that the death penalty could be administered so long as it is applied consistently in keeping with the fourteenth amendment (Gregg v Georgia,1976).

The irony is that despite the reforms that were made after Gregg v. Georgia, many of the arbitrary circumstances pointed out in Furman v. Georgia still exist within modern death penalty sentencing. One of the most glaring examples is geography of where death penalties happen. The state of Texas has accounted for roughly 36% of all executions since Gregg v. Georgia (Office of Court Administration, 2023). That is over four times as many as the next leading state, Oklahoma, which sits at roughly 8%. However, that statistic only compares states, the real geographic disparities occur when looking at how Texas handles death penalty sentences by county.

Despite being the death penalty capital of the United States, within Texas, capital punishment is not administered consistently across the state. In fact, out of the hundreds of

capital crime cases that go to court each year in Texas, less than 1% of those cases receive a death penalty (Office of Court Administration, 2023). The cause of this is for several reasons, many of them for the same reasons outlined in Furman v. Georgia. The most notable one is, again, geography. Out of the 254 counties in Texas, more than half of them have never sentenced a single person to the death penalty. Within the last five years, only thirteen Texas counties have sentenced someone to the death penalty (Office of Court Administration, 2023). Harris county, just one singular county in Texas, has made up almost a quarter of all executions in the state since it was reestablished after Gregg v. Georgia. These statistics only emphasize that geographical arbitrariness never ended.

One of the ironic reasons for this disparity, even within the death penalty capital, is the fact that there is a two tiered sentencing structure. Due to how long a death penalty trial can last, upwards of thirty years, many poorer counties within Texas cannot afford to go through with the process (Office of Court Administration, 2023). Instead, opting for sentences such as life in prison. Harris county accounts for most of the state's death penalties not because of racial bias, but simply because it has prosecutors willing to go through with them and the money to fund them (Office of Court Administration, 2023). Because of this fact, the difference between life and death for a defendant often depends on what county they committed the crime in, not the heinousness of the act. The arbitrary nature of how death penalty sentencing plays out ultimately leads to a perception of the criminal justice system as unjust, and potentially biased, further undermining the system.

The arbitrary sentencing that still occurs in the United States has created an ethical crisis that threatens to invalidate its entire criminal justice system. The argument behind the death penalty is one of retributive justice (Braswell et al., 2023). That due to the dignity of the victim

and the heinousness of the crime, the perpetrator must be administered a punishment equal to that of the crime. The fact that whether a death sentence will occur being largely dependent on geographical location undermines the entire justice aspect of the sentence. There shouldn't be any case where one of the main factors influencing a defendant's sentence is what the county can afford. The current arbitrary nature of death penalty sentencing ultimately denies justice to both the victim of the crime as well as the perpetrator.

The public might be unaware to the specifics, but they are not blind to the current dysfunction of death penalty sentencing. The current disfunction is what has lead states like California and Virginia to place moratoriums on the death penalty for their states. It's what leads activists and racial communities to perceive bias. Whatever the degree of truth there are to accusations of bias, ultimately the poor perception comes from the fact that there is indeed a crisis.

The United States justice system partially relies on a social contract between itself and the countries citizens. It can only exist as long as its citizens perceive that the country they are living in is fair and just (Braswell et al., 2023). In its current state, death penalty sentencing is practiced in most states arbitrarily. A citizen can commit one crime in one county and be sentenced to death, however if they committed the same crime ten feet over in a different county they could sentenced to something completely different. This is fundamentally a violation of citizens' Fourteenth Amendment rights. Because the United States consistently violates citizens' equal protection under the law, the only ethical way forward is a federal moratorium on the death penalty.

The capital punishment system within America is ultimately failing because of the geographical and economical incapabilities of administering the death penalty equally. The

promises of Gregg v. Georgia to reduce arbitrariness failed, and ironically enough in some cases it actually increased it. Because of the historical geographical and economical arbitrariness of death penalty sentencing, the public's poor perception of the criminal justice system is validated. The consistent denial of equal protections has eroded public trust and should serve as a warning. Since the state cannot consistently guarantee a capital punishment trial free of arbitrary circumstances, a moratorium should be placed on the practice until reforms can be made.

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